



CHAPTER xxii

An Act to confirm a Scheme of the Charity Commissioners for the application or management of the Charity known as Sir William Turner's Hospital at Kirkleatham in the north riding of the county of York.

[1st August 1951.]

WHEREAS the Charity Commissioners in their report to His Majesty of their proceedings during the year one thousand nine hundred and fifty reported that they had approved and certified a Scheme for the application or management of the Charity known as Sir William Turner's Hospital at Kirkleatham in the north riding of the county of York regulated by an Act for settling the several Charities of the Foundation of Sir William Turner knight deceased and the Possessions and Revenues thereunto belonging passed in the 31st year of the reign of King George 2. cap. 16. (private):

And whereas it is expedient that the Scheme as the same is amended and fully set out and defined in the schedule to this Act should be confirmed:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The said scheme as amended is hereby confirmed Provided Confirmation always that nothing in this Act or in the said Scheme shall be of scheme. held to interfere with the ordinary jurisdiction over endowed charities now exercisable by the High Court of Justice and the Charity Commissioners.

2. This Act may be cited as Sir William Turner's Hospital at Short title. Kirkleatham Charity Scheme Confirmation Act 1951.

SCHEDULE

Scheme for the application or management of the Charity known as Sir William Turner's Hospital at Kirkleatham in the north riding of the county of York regulated by an Act for settling the several charities of the foundation of Sir William Turner knight deceased and the possessions and revenues thereunto belonging passed in the 31st year of the reign of King George 2. cap. 16 (private).

1. *Administration of Charity.*—The above-mentioned Charity and the endowments thereof specified in the schedule hereto and all other the endowments (if any) of the Charity shall be administered and managed subject to and in conformity with the provisions of this Scheme by the body of Trustees hereinafter constituted.

2. *Dissolution of corporation.*—The corporation called the governor brethren and sisters visitor master and usher of the hospital and free school of Turner's Hospital and free school of the Foundation of Sir William Turner knight constituted by the above-mentioned Act passed in the 31st year of the reign of King George II is hereby dissolved.

3. *Vesting.*—The property specified in Part I of the said schedule is hereby vested in the Official Trustee of Charity Lands for all the estate and interest therein belonging to or held in trust for the Charity.

4. *Cash.*—All sums of cash now or at any time belonging to the Charity and not needed for immediate working purposes shall be invested as soon as possible (unless otherwise ordered) under the authority of a further order of the Charity Commissioners (hereinafter referred to as the Commissioners) in the name of the Official Trustees of Charitable Funds.

TRUSTEES

5. *Trustees.*—The body of Trustees shall consist when complete of eight competent persons being—

Two representative Trustees; and

Six co-optative Trustees.

6. *Representative Trustees.*—The representative Trustees shall be appointed from time to time one by the urban district council of Guisborough and one by the borough council of Redcar. Each appointment shall be made for a term of four years at a meeting convened and held according to the ordinary practice of the council concerned. The chairman of the meeting shall cause the name of each person appointed to be notified forthwith to the Trustees or their clerk. The person appointed may be but need not be a member of the council concerned.

7. *First representative Trustees.*—The first representative Trustees shall be appointed as soon as possible after the date hereof and their names shall be notified to Frederick Cosgrove hereinafter named on behalf of the Trustees.

8. *Co-optative Trustees.*—Subject as hereinafter provided for the first co-optative Trustees the co-optative Trustees shall be persons residing or carrying on business in or near Kirkleatham and shall be appointed by a resolution of the Trustees to be passed at a special meeting.

9. *First co-optative Trustees.*—The following persons if living at the date of this Scheme and willing to act shall be the first co-optative Trustees and shall hold office in accordance with the provisions of this Scheme:—

BENJAMIN OWEN DAVIES shipping agent; and

ANNA MARIA DAVIES married woman both of Cartrefle Kirkleatham Street; and

ALBERT EDWARD KING of 39 Coatham Road cafe proprietor; and

FREDERICK COSGROVE of Coatham Vicarage 9 Blenheim Terrace clerk in holy orders all in Redcar; and

JOAN PETCH J.P. of Liverton Grange Loftus married woman all in the north riding of the county of York; and

WILLIAM MORTON BALCH of 27 Porchester Terrace in the metropolitan borough of Paddington chartered surveyor.

10. *Declaration by Trustees.*—No person shall be entitled to act as a Trustee whether on a first or on any subsequent entry into office until after signing in the minute book of the Trustees a declaration of acceptance and of willingness to act in the trusts of this Scheme.

11. *Determination of trusteeship.*—Any future co-optative Trustee who ceases to be qualified as aforesaid and any Trustee who is absent from all meetings of the Trustees during a period of one year or who is adjudged bankrupt or makes a composition or arrangement with his creditors or who is incapacitated from acting or who communicates in writing to the Trustees a wish to resign shall thereupon cease to be a trustee.

12. *Vacancies.*—Upon the occurrence of a vacancy the Trustees shall cause a note thereof to be entered in their minute book at their next meeting and in the case of a vacancy in the office of representative Trustee shall cause notice thereof to be given as soon as possible to the council concerned. Any competent Trustee may be re-appointed. No vacancy in the office of co-optative Trustee shall be filled until after the lapse of one calendar month from its occurrence.

MEETINGS AND PROCEEDINGS OF TRUSTEES

13. *Ordinary meetings.*—The Trustees shall hold at least two ordinary meetings in each year.

14. *First meeting.*—The first meeting of the Trustees shall be summoned by the said Frederick Cosgrove or if he fails for two calendar months after the date of this Scheme to summon a meeting by any two of the Trustees.

15. *Chairman.*—The Trustees at their first ordinary meeting in each year shall elect one of their number to be chairman of their meetings until the commencement of the first ordinary meeting in the following year. The chairman shall always be eligible for re-election. If at any meeting the chairman is not present within ten minutes after the time appointed for holding the same or there is no chairman the Trustees present shall choose one of their number to be chairman of the meeting.

16. *Special meetings.*—A special meeting may be summoned at any time by the chairman or any two Trustees upon four days' notice being given to all the other Trustees of the matters to be discussed.

17. *Quorum.*—There shall be a quorum when three Trustees are present at a meeting.

18. *Voting.*—Every matter shall be determined by the majority of votes of the Trustees present and voting on the question. In case of equality of votes the chairman of the meeting shall have a casting vote whether he has or has not previously voted on the same question but no Trustee in any other circumstances shall give more than one vote.

19. *Minutes and accounts.*—A minute book and books of account shall be provided and kept by the Trustees. All proper accounts in relation to the Charity shall be made out in each year and certified in such manner as the Commissioners require and copies thereof shall be transmitted to the Commissioners and published in conformity with the provisions of the Charitable Trusts Acts.

20. *General power to make regulations.*—Within the limits prescribed by this Scheme the Trustees shall have full power from time to time to make regulations for the management of the Charity and for the conduct of their business including the summoning of meetings the deposit of money at a proper bank and the custody of documents.

21. *Clerk.*—The Trustees may appoint some fit person to be their clerk and to hold office during their pleasure and may pay to him such salary as the Commissioners may approve from time to time.

MANAGEMENT OF LANDS

22. *Allotments Extension Act 1882.*—The Trustees shall let and otherwise manage in conformity with the provisions of the Allotments Extension Act 1882 such of the lands belonging to the Charity as are subject to the provisions of section 4 of that Act. The Trustees may set apart and let in allotments in the manner prescribed by and subject to the provisions of the said Act any portion of the land belonging to the Charity other than buildings and the appurtenances of buildings.

23. *Management and letting of lands.*—Subject as aforesaid the Trustees shall let and otherwise manage all the lands (including buildings or parts of buildings) belonging to the Charity not required to be retained or occupied for the purposes thereof. In every case the Trustees shall give public notice of the intention to let any land in such manner as they consider most effectual for ensuring full publicity. The Trustees shall not create any tenancy in reversion after more than 3 years of any existing term or for more than 21 years certain or for less than the improved annual value at rack rent without the sanction of the Commissioners or a competent court.

24. *Leases.*—The Trustees shall provide that on the grant by them of any lease the lessee shall execute a counterpart thereof. Every lease shall contain covenants on the part of the lessee for the payment of rent and the proper cultivation of the land and all other usual and

proper covenants applicable to the property comprised therein and a proviso for re-entry on non-payment of the rent or non-performance of the covenants.

25. *Repair and insurance.*—The Trustees shall keep in repair and insure against fire all the buildings of the Charity so far as not required to be kept in repair and insured by the lessees or tenants thereof.

APPLICATION OF INCOME

26. *Expenses of management.*—The Trustees shall first defray out of the income of the Charity the cost of repairs and insurance and all other charges and outgoings payable in respect of the property of the Charity and all the proper costs charges and expenses of and incidental to the administration and management of the Charity.

27. *Extraordinary repair fund.*—Subject to the further order or orders of the Commissioners a fund for the extraordinary repair improvement or rebuilding of the buildings belonging to the Charity shall be provided and maintained as follows.

Under the authority of a further Order of the Commissioners the said Official Trustees shall transfer in their books to the credit of an account to be entitled extraordinary repair fund a sum of £6,000 Commonwealth of Australia 2½ per cent. registered stock 1970–75 part of the sum of £9,108 18s. 1d. like stock specified in the said schedule The said Official Trustees shall invest the yearly dividends of the sum of stock transferred as aforesaid and of any other stocks funds or securities for the time being standing to the credit of the said account and any cash placed to the said credit at compound interest in the purchase in their name to the credit of the said account of any stocks funds or securities of the Government of the United Kingdom or any other securities issued under the authority of Parliament the principal of and the interest on which are for the time being guaranteed by the Treasury and charged upon the Consolidated Fund of the United Kingdom.

Subject to the approval of the Commissioners all stocks funds and securities standing to the credit of the said account may be applied from time to time for the extraordinary repair improvement or rebuilding of the said buildings.

28. *Benefit of brethren and sisters.*—Subject to the payments aforesaid the Trustees shall apply the yearly income of the Charity whenever it suffices for the purpose in giving effect to all or any of the provisions hereinafter contained for the benefit of the brethren and sisters of the Charity or otherwise for their benefit.

BRETHREN AND SISTERS

29. *The hospital.*—The property numbered 1 in Part I of the schedule hereto so far as required for the residence of the brethren and sisters shall be appropriated and used therefor in conformity with the provisions of this Scheme.

30. *Saving for existing brethren and sisters.*—Appointments of brethren and sisters under this Scheme shall be made without prejudice to the interests of the existing brethren and sisters.

31. *Number and qualifications of brethren and sisters.*—The full number of brethren shall be ten single men either bachelors or widowers and the full number of sisters shall be ten single women either spinsters or widows. They shall be poor persons of not less than 63 years of age members of the Church of England and of good character.

32. *Superintendent and matron.*—Whenever the income of the Charity suffices for the purpose the Trustees may appoint some fit persons to be the superintendent and the matron of the hospital to hold office at the pleasure of the Trustees and to perform such duties as may be necessary for the superintendence comfort and care of the brethren and sisters and may pay to the superintendent and to the matron such salary as the Commissioners may approve from time to time. The Trustees may also allot to the superintendent and to the matron a room or rooms in the Hospital as a residence while holding such office.

33. *Chaplain.*—The Trustees may appoint from time to time a clerk in holy orders of the Church of England to be the chaplain of the chapel belonging to the Charity and to perform divine service therein and may pay to him out of the income of the Charity such a stipend as the Commissioners may approve from time to time. The chaplain shall perform such duties and hold such services in the chapel of the Charity as the Trustees may prescribe from time to time and shall hold his appointment during the pleasure of the Trustees.

34. *Domestic services and attendance in illness.*—The Trustees if they think fit may provide the brethren and sisters at the cost of the Charity with—

- (a) fuel lighting heating food clothing and other comforts or necessities;
- (b) any necessary attendance in case of illness or permanent infirmity.

35. *Stipends of brethren and sisters.*—There may be paid to each of the brethren and sisters out of the income of the Charity by weekly or other periodical payments as the Trustees think fit such a stipend having regard to the needs and circumstances of the respective brethren and sisters and to the income and other circumstances of the Charity as the Trustees may fix from time to time. Provided that—

- (1) The Trustees instead of paying the whole amount of the stipend to any brother or sister in money may expend the whole or any portion thereof from time to time for his or her benefit as they think fit;
- (2) In the case of a person appointed or qualified to be appointed as a brother or sister possessing or becoming possessed of a properly secured income from other sources or in receipt of assistance from relations or others the Trustees may fix such a smaller stipend to be payable out of the income of the Charity as they think fit.

36. *Payment of stipends and conduct of inquiries.*—The clerk to the Trustees or some other person appointed by them for the purpose shall be responsible for the payment to the brethren and sisters of any

such stipend as aforesaid and shall conduct as from time to time directed by the Trustees any inquiries with regard to the brethren and sisters and to applicants for appointment.

37. *Notice of vacancy.*—No appointment of a brother or sister shall be made by the Trustees until a sufficient notice of the vacancy to be filled specifying the qualifications required from candidates (which may be according to the form annexed hereto) has been published by advertisement or otherwise so as to give due publicity to the intended appointment.

38. *Applications for appointment.*—All applications for appointment shall be made in the first place in writing in such manner as the Trustees may direct to the Trustees or their clerk. Before appointing any applicant to be a brother or sister the Trustees shall require him or her to attend in person except in case of physical disability. Every applicant must be prepared with sufficient testimonials and other evidence of his or her qualification for the appointment.

39. *Appointments of brethren and sisters.*—Every appointment of a brother or sister shall be made by the Trustees and shall be made at a special meeting to be held as soon as conveniently may be after the occurrence of the vacancy to be filled allowing a reasonable time for publication of notice and for inquiries as to the applicants.

40. *Selection of brethren and sisters.*—The brethren and sisters shall be selected after full investigation of the character and circumstances of the applicants and inquiry whether they have shown reasonable providence and whether and to what extent they may reasonably expect assistance from relations or others.

For the purposes of this clause the Trustees may avail themselves of the agency of any charity organisation society or other like agency.

41. *Register.*—The Trustees shall provide and keep a book in which shall be entered the name age and description of every person appointed to be a brother or sister the date of every appointment and the date and occasion of every vacancy. They shall also keep a register of all applications for appointment.

42. *Absence from hospital.*—No brother or sister shall be absent from the hospital for a period exceeding 72 hours without the consent in writing of the Trustees or their clerk but in special cases such consent may for any sufficient reason be given after the absence has occurred.

43. *Rooms not to be let.*—No brother or sister shall be permitted to let or part with the possession of the room or rooms allotted to him or her or except with the special permission of the Trustees to suffer any person to share the occupation of the same or of any part thereof.

44. *Removal of brethren and sisters.*—(1) Any brother or sister detained under lawful authority as a person suffering from mental disease shall be removed from being a brother or sister.

(2) The following persons may be removed from being brethren or sisters:—

(a) Any brother or sister who in the opinion of the Trustees is guilty of insobriety insubordination breach of regulations or immoral or improper conduct;

- (b) Any brother or sister who in the opinion of the Trustees is disqualified for retaining his or her appointment by having become entitled to a sufficient income from sources other than the Charity or from any other cause;
- (c) Any brother or sister who has been appointed without having the required qualifications;
- (d) Any brother or sister who is suffering from mental or other disease or infirmity rendering him or her unfit to remain a brother or sister;
- (e) Any brother or sister who is suffering from mental or other disease or infirmity causing his or her removal to a hospital or other institution.

(3) Upon the removal of any brother sister superintendent or attendant the Trustees shall take possession of the tenement or room occupied by him or her and upon the removal of any brother or sister shall proceed to appoint another brother or sister in his or her place.

(4) Any brother or sister removed under section (1) of this clause or removed under section (2) of this clause on account of mental or other disease or infirmity may on recovery be re-appointed without previous notice being given of the vacancy to be filled. The Trustees if they think fit may apply out of the income of the Charity for the benefit of any person so removed pending re-appointment a weekly sum not exceeding the stipend paid to such person before removal.

45. *Regulations.*—The Trustees may from time to time prescribe such reasonable regulations as they consider expedient for the government of the brethren and sisters but so that the same shall not be at variance or inconsistent with any of the provisions of this Scheme and by such regulations may provide that the brethren and sisters shall render such assistance to the superintendent attendants and to each other as is within their power.

GENERAL PROVISIONS

46. *Appropriation of benefits.*—The appropriation of the benefits of the Charity shall be made by the Trustees from time to time at meetings of their body and not separately by any individual Trustee or Trustees.

47. *Trustees not to be personally interested.*—No Trustee shall take or hold any interest in property belonging to the Charity otherwise than as a Trustee for the purposes thereof and no Trustee shall receive any remuneration or be interested in the supply of work or goods at the cost of the Charity.

48. *Charity not to relieve public funds.*—The funds or income of the Charity shall not in any case be applied in relief of rates taxes or other public funds.

49. *Alteration of Scheme.*—The Commissioners in the exercise of their ordinary jurisdiction may establish from time to time Schemes for the alteration of any of the provisions of this Scheme as if those provisions had been made by the founder in the case of a charity having a founder.

50. *Questions under Scheme.*—Any question as to the construction of this Scheme or as to the regularity or the validity of any acts done or about to be done under this Scheme shall be determined conclusively by the Commissioners upon such application made to them for the purpose as they think sufficient.

51. *Date of Scheme.*—The date of this Scheme shall be the date of the Act of Parliament confirming the same.

FORM OF NOTICE

In the matter of the Charity known as SIR WILLIAM TURNER'S HOSPITAL at KIRKLEATHAM in the north riding of the county of YORK.

The Trustees of this Charity give notice that they will on
the day of 19 meet at
at o'clock to appoint a brother (sister) to fill a vacancy
in the number of brethren (sisters) of the Charity.

Poor bachelors or widowers (spinsters or widows) of not less than 63 years of age members of the Church of England and of good character are eligible for the appointment.

Application for the appointment must be made in the first place in writing to the Trustees or their clerk at
on or before the 19 Every applicant
must state his or her name address age and occupation and must be
prepared to produce sufficient testimonials and other evidence of his
or her qualification for the appointment and except in case of physical
disability to attend in person.

Signed

{ Clerk to
the
Trustees.

SCHEDULE

PART 1

1. Land situate at Kirkleatham with the hospital buildings (including a chapel) thereon known as Turner's Hospital whereof parts have been let or set apart as follows:—

(i) The first floor of the west wing thereof being—

(a) The northern end of the first floor let off in a separate flat to Eveline Sarah McEndoo at the yearly rent of £26; and

(b) The southern end of the said first floor let off in a separate flat to Alexander McArthur Young at the yearly rent of £100;

(ii) The part lying in the south-west angle thereof between the said west wing and the chapel and formerly known as the master's house being—

(c) Part of the said master's house let off in a separate flat to Thomas Richard Davies at the yearly rent of £110; and

(d) The residue of the said master's house intended to be let off as a separate dwelling-house.

2. Land containing 209 acres 0 roods 14 perches or thereabouts with the farmhouse and farm building thereon situate at Ingleby Barwick in the county of York known as Low Barwick Farm and numbered 107 108 109 111 112 113 114 116 118 119 120 120a 120b 121 and 122 on the ordnance survey map (1929 edn.) all subject to a yearly rentcharge of £17 13s. 6d. charged thereon or issuing thereout (being part of a fee farm rent of £59 payable to the Poor Man's Hospital at Coxwold of the foundation of Thomas Earl of Fauconberg) and now let to Charles Lamb at the yearly rent of £190.

3. Land containing 19 acres 0 roods 39 perches or thereabouts situate adjoining Low Barwick Farm numbered 110 115 and 117 (part) on the said map and now in hand.

4. Four separate yearly rentcharges of £2 £4 £2 and £2 amounting in the whole to £10 respectively charged upon or issuing out of four pieces of land containing in the whole 1 acre 0 roods 26 perches situate near Trenholme Bar railway station in the county of York and now in the ownership of the British Transport Commission (Railways Executive North Eastern Section).

5. A yearly rentcharge of £50 charged upon or issuing out of an estate at Stainsby Stainton in the north riding of the county of York now in the ownership of John Thomas Raper.

6. A yearly rentcharge of £20 issuing out of land known as Turner's Arms Farm on the Kirkleatham Estate at Kirkleatham in the north riding of the county of York now in the ownership of George Harold Blair.

7. Yearly wayleave amounting to 1s. received from the Postmaster-General for one pole.

Note.—A contract for the sale of items 2 and 3 above has been negotiated.

PART II

The following investments held by the Official Trustees of Charitable Funds:—

£9,155 17s. 10d. 3 per cent. Redemption Stock 1986-96.

£9,108 18s. 1d. Southern Rhodesia $2\frac{1}{2}$ per cent. Stock 1965-70.

£5,609 10s. 5d. British Electricity 3 per cent. Guaranteed Stock 1974-77.

£4,808 18s. 1d. British Transport 3 per cent. Guaranteed Stock 1978-88.

£9,108 18s. 1d. Commonwealth of Australia $2\frac{1}{2}$ per cent. Registered Stock 1970-75.

£827 5s. 2d. $2\frac{1}{2}$ per cent. Consolidated Stock representing a sum of £578 4s. 3d. like stock and the investment of a sum of £199 5s. the accumulations thereof down to the 5th October 1950 pursuant to an order of the Commissioners of the 5th April 1939 for investment at compound interest to replace a sum of £400.

£4,372 9s. 1d. British Transport 3 per cent. Guaranteed Stock 1978-88 representing a sum of £4,300 like stock and the investment of a sum of £64 10s. the accumulations thereof down to the 1st July 1950 pursuant to an Order of the Commissioners of the 21st February 1950 for investment at compound interest to replace a sum of £3,500.

Sealed by order of the Board this 29th day of December 1950.

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